

(CNR No.HRGR01-007022-2019) (CIS No. COMA/5/2019)
SFIO Vs. Adarsh Buildestate Limited & others

Present: Sh. Lokender Raghav, Senior Standing Counsel for
complainant-SFIO.
Sh. P.C. Maurya, Additional Director, SFIO.
Ms. Natasha Sankar, Prosecutor, SFIO.

S/Sh. Vishal Gupta, Aditya Singla, Pallav Gupta & Ms.
Yashna Thakran, counsel for the accused Mukesh Modi and
Rahul Modi.

Ms. Shreya Dixit & Ms. Yashna Thakran, counsel for accused
Vivek Harivyasi.

Vide separate detailed order of the even date, signed and
pronounced, finding sufficient prima facie evidence against the accused
No.1 to 187, it is ordered as under;

I. that all the companies Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildestates Private Limited (A-30), Maisonette Infraestates

Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Abhay K Shah & Associates (A-84), Axtron

Tex Chem (I) Pvt Ltd. (A-85) including one auditor firm through its Directors and authorized employees, Laxmikripa Buildcon Pvt Ltd (A-86), Riddhi Siddhi Infraprojects Pvt Ltd (A-87), Riddhi Siddhi Infratech Pvt Ltd (A-88), S L Bohra & Associates (A-89), Cynosure Real Estates Pvt Ltd (A-90), EOS Developers Pvt Ltd (A-91), Adler Infra Ventures Pvt Ltd (A-92), Headstrong International Exports Pvt Ltd (A-93), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt Ltd (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt Ltd (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt Ltd (A-107), Porsche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt Ltd (A-112), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), are liable to be prosecuted for commission of an offence as punishable under Sections 120B IPC, 447 of the Companies Act, 2013, 417, 418, 420 read with Section 120B of the IPC;

II. And that accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realstate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha

Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarathi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited

(A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Axtron Tex Chem (I) Pvt Ltd. (A-85), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Paras Bolia (A-121), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Jainam Rathod (A-130), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Sidharth Chauhan (A-135), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Surender Singh (A-140), Aditya Sarda (A-141) are also liable to be prosecuted for commission of an offence as punishable under Sections 120B read with Section 417, 418, 420 of IPC;

III. And that the accused Mukesh Modi (A-113), Priyanka Modi (A-117) and Rahul Modi (A-114) are also liable to be prosecuted for commission of an offence as punishable under Section 406 IPC;

IV. And that the accused Mukesh Modi (A-113), Rahul Modi (A-114), Rohit Modi (A-123), Vaibhav Lodha (A-120), Rajeshwar Singh (A-125), Vivek Purohit (A-134), Neha Gemawat (A-124), Jainam Rathod (A-130) are also liable to be prosecuted for commission of an offence as punishable under Sections 467, 468, 471, 474 read with Section 120B IPC;

V. And that the companies Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133),

Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Leena Harivyasi (A-146), Vimal Sanwermal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 58A of the Companies Act, 1956.

VI. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream

build Private Limited (A-48), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Leena Harivyasi (A-146), Vimal Sanwarmal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 74(3) of the Companies Act, 2013;

VII. And that the accused Aaditya Mega Projects Private Limited (A-2), Adarsh Buildestate Limited (A-1), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Bondi Builders & Developers Private Limited (A-19), Chevron Buildcon Private Limited (A-21),

Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Gajanan Infrabuild Private Limited (A-29), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Limited (A-43), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Sambhav Energy Limited (A-44), Fracton Technologies Private Limited (A-65), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Daisy Infratech Private Limited (A-22), Maisonette Infraestates Private Limited (A-31), Shack Infrastructure Private Limited (A-45), Tectonic Infrastructure Private Limited (A-49), Entice Realtech Private Limited (A-27), Govindam Buildstates Private Limited (A-30), Nirwana Buildcon Private Limited (A-35), Sun Dream Build Private Limited (A-48), Waterfall Real Estates Private Limited (A-57), Rohit Virendra Modi (A-123), Rajeshwar Singh (A-125), Bharat Das Vaishnav (A-142), Vivek Purohit (A-134), Bharat Kumar Mardia (A-154), Rahul Modi (A-114), Prakash Chandra Purohit (A-133), Vaibhav Lodha (A-120), Neha Gemawat (A-124), Mukesh Kumar Modi (A-113), Virendra Prakashraj Modi (A-122), Mahender Kumar Tak (A-155), Praveen Maheshwarei (A-156), Rajeev Maheshwarei (A-157) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

VIII. And that the accused Adarsh Buildestate Limited (A-

1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53),

Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Abhay K Shah & Associates (A-84), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivvysi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Leena Harivvysi (A-146), Vimal Sanwarmal Sharma (A-147), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Nazima Khan (A-152), Shabbir Khan (A-153), Mahendra Kumar Tak (A-155), Ramlal Arya (A-158), Hemant Kumar Jain (A-159), Shiv Raj Sharma (A-160), Praveen Kumar (A-161), Mahesh Dutt Sharma (A-178), Damyanti Bhandari (A-179), Ichchhita Dungarwal (A-180), Neha Kataria (A-181), Nimesh Kumar Ramesh Chandra Soni (A-182), Rituraj Singh (A-183), Dushyant Singh Rathore (A-184), Shashank Shekhar Singh Rathore (A-185), Jitesh Kumar Parmar (A-186 are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March 2014) & 448 and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

IX. And that the accused Laxmikripa Buildcon Pvt. Ltd.

(A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivvysi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171)), Sudhir Mehta (A-170)), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

X. And that the accused Laxmikripa Buildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivvysi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187, Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168, Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171), Sudhir Mehta (A-170), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 120B, 417, 418, 420 of IPC;

XI. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivvysi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Sudhir Mehta (A-170) are also liable to be prosecuted for the commission of offence as

punishable under Section 58A of the Companies Act, 1956;

XII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169) are also liable to be prosecuted for the commission of offence as punishable under Section 74(3) of the Companies Act, 2013;

XIII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Vivek Harivyasi (A-115), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

XIV. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Riddhi Siddhi Infratech Pvt. Ltd. (A-88), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March, 2014) and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

XV. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited

(A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Harivvysi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XVI. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Harivvysi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the

commission of offence as punishable under Section 120B and 418, 420 of IPC;

XVII. And that the accused Abhay K Shah & Associates (A-84), Abhay K Shah (A-127) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013;

XVIII. And that the accused Rajiv Kumar Rana (A-177) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XIX. And that the accused Mahesh Dutt Sharma (A-178) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XX. And that the accused Sampati Lal Bohra & Associates (A-89) - audit firm and its two partners Raj Kumar Bohra (A-171) and Sudhir Mehta (A-170), and Peeyush Aggarwal (A-173) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013.

Let all the accused persons be accordingly summoned to face prosecution as per the above details, throughailable warrants in the sum of ₹ 10,000/- with one surety in the like amount with directions to appear on 30.07.2019

Since there are multiple accused and thus multiple warrants have to be issued, as stated by the Complainant SFIO, they have already entered the entire data in soft form, in order to expedite the process the Complainant SFIO is directed to prepare the warrants as per the proforma to be supplied to them by this court, in the name of the accused persons as named above and submit the same to the Court within 15 days and thereafter the summons will be signed and sent to DCP(Headquarters),

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Gurugram, to serve the same on the accused persons through special
executing team in association with the nominee or one of the
Investigating Officer of the Complainant SFIO, who will be responsible
for coordinating with the police to serve the warrants as per the procedure
established by law.

**Pronounced in open Court
on this 3rd day of June, 2019.**

(Ravi Kumar Sondhi)

(UID No. HR-0026)

**Sessions Judge,
Gurugram.**

(Ravi Kumar Sondhi)

(UID No. HR-0026)

SJ, GGM, 03.06.2019

Satish Kumar